CASE STUDY 04 · CONFIDENTIAL CLIENT ENGAGEMENT

Controller and processor determination under GDPR Article 4

Working out who was legally accountable for each part of a data-sharing arrangement involving several vendors.

CLIENT SECTOR Platform with layered vendor and sub-processor relationships	MY ROLE Regulatory analysis and contract recommendations
WORKED WITH General counsel, data protection officer, executive leadership	FOCUS UK and EU GDPR Article 4(7) and 4(8)

The situation

Each party described its own role differently, and the contracts followed those descriptions. The client needed to know who was actually controller, joint controller or processor before signing.

What I did

1. **Determination memo**
   A reasoned view of each party's status, applying the purpose-and-means test rather than relying on how parties described themselves.
2. **Data flow diagram**
   A map of every party touching the data, showing where status changed as data moved between systems.
3. **Contract recommendations**
   Specific changes to data processing agreements and joint-controller arrangements so the contracts matched the determination.
4. **Lawful basis matrix**
   Each party matched to the lawful basis for its processing activity.

HOW I APPROACHED IT

Status decides who answers a subject access request and who a regulator looks at first, so I settled it before the contracts did.

Similar work I take on

- Platforms using AI vendors or sub-processors that handle personal data
- Organisations negotiating data-sharing or joint-controller arrangements
- Teams reviewing existing data processing agreements

I am qualified as a barrister and solicitor in Nigeria. UK and EU regulatory analysis is provided as compliance advice, not as a legal service regulated in England and Wales.

The client's name and working documents are withheld under confidentiality.

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